

VCU322445 Reyes, Roque vs. Saleh, Faiz H. et al

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-09-03

Motion: Motion for Leave to File Amended Complaint

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Re: Reyes, Roque vs. Saleh, Faiz H. et al

Case No.: VCU322445

Date: September 3, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Motion for Leave to File Amended Complaint

Tentative Ruling: To deny the motion. CMC and OSC re: dismissal are set for October 14, 2026; 8:30 am; D1. The Court's OSC re: Sanctions against each side are likewise continued to October 14, 2026.

Facts

This matter, initially filed June 13, 2025 by Plaintiff Roque Reyes against Defendants Faiz Saleh and Rasha Saleh for violations of the Unruh Civil Rights Act, Civil Code section 51. The complaint seeks declaratory, injunctive and monetary relief.

The complaint alleges Plaintiff visited Farmer's Food Market, located at 14542 RD 192, Porterville, CA 93257, on May 3, 2025, purchased items on that date, obtained a receipt and "also evaluated the Business and the Property for compliance with the ADA and the UCRA." Plaintiff identifies lack of accessible parking, no accessible route, a business entrance door lacking adequate width and that Plaintiff's right and entitlement to full and equal access was denied.

On July 15, 2025, Plaintiff filed a notice that Plaintiff died June 17, 2025.

On July 21, 2026, Plaintiff filed this motion "to add Julia Soto as a plaintiff pursuant to 42 U.S.C § 12182(b)(1)(E)."

The proposed complaint seeks to add the following:

"Plaintiff SOTO assisted and accompanied Plaintiff REYES when he visited the Subject Property. Plaintiff SOTO seeks relief based on her association with her former spouse, long-term partner, and companion REYES. Pursuant to 42 U.S.C § 12182(b)(1)(E), Plaintiff SOTO has been discriminated against and has suffered an injury within the meaning of the ADA that is separate, direct, and independent from that suffered by Plaintiff REYES as a result of the barriers that exist at the Subject Property. As the care provider of Plaintiff REYES, Plaintiff SOTO would necessarily accompany Plaintiff REYES to the Subject Property. Plaintiff SOTO experienced frustration and discrimination when she encountered the barriers at the Subject Property. These injuries are specific to her independent right to access the Subject Property with her partner. Plaintiff SOTO has been denied full and equal access to the Subject Property because of her association with a person with a mobility disability."

Counsel provides a declaration stating "Proposed Plaintiff Ms. Soto has been approved as an administrator of Mr. Reyes' estate and has obtained a bond" and that:

"5. The amendment is necessary because Plaintiff ROQUE REYES is deceased and Ms. Soto has a cognizable claim under the ADA and the UCRA pursuant to 42 U.S.C § 12182(b)(1)(E). The amendment is proper because Defendants will not be prejudiced by the amendment.

6. The facts that gave rise to the proposed allegations rely on and relate back to the same set of facts as Mr. Reyes' original allegations.

7. The proposed amendment is requested now due the death of Mr. Reyes, the appointment of Ms. Soto as representative of Mr. Reyes estate, and Defendants' failure to respond to our contact attempts." (Declaration of Fitzgerald ¶¶4-7.)

Plaintiff attaches a copy of the proposed amended complaint as well as a redlined version thereof. (Declaration of Fitzgerald ¶8 – Ex. B.)

No opposition appears to have been filed.

Authority and Analysis

The proposed amended complaint seeks to add Soto as a separate plaintiff based on association with Plaintiff and arising out of the same event as pled in the complaint.

The Court may, in the furtherance of justice, and upon any terms as may be proper, allow a party to amend any pleading. (Code Civ. Proc. §§ 473, 576.) In general, California courts liberally exercise discretion to permit amendment of pleadings in light of a strong policy favoring resolution of all disputes between parties in the same action. (Nestle v. Santa Monica (1972) 6 Cal.3d 920, 939; Mesler v. Bragg Management Co. (1985) 39 Cal.3d 290, 296 ["[T]here is a strong policy in favor of liberal allowance of amendments."].) Pursuant to this policy, requests for leave to amend generally will be granted unless the party seeking to amend has been dilatory in bringing the proposed amendment before the Court, and the delay in seeking leave to amend will cause prejudice to the opposing party if leave to amend is granted. (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 490; Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564-565.) The decision on a motion for leave is directed to the sound discretion of the trial court.

Rule 3.1324 regulates the content of the motion and supporting declaration as follows:

"(a) Contents of motion

A motion to amend a pleading before trial must:

(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

(b) Supporting declaration

A separate declaration must accompany the motion and must specify:

(1) The effect of the amendment;

(2) Why the amendment is necessary and proper;

(3) When the facts giving rise to the amended allegations were discovered; and

(4) The reasons why the request for amendment was not made earlier.”

Here, subsection (a) is complied with via Exhibit B.

The Court cannot find compliance with subsection (b) of Rule 3.1354, as the amended complaint alleges that Soto suffered independent and unique harm at the same time as Plaintiff on the date of the visit, but failed to bring this claim at the time of the filing of the initial complaint. The facts giving rise to the amended allegations appear known at the time of the filing of the complaint. There is no explanation as to why Soto was not added as a Plaintiff from the inception of this case. It is within the court's discretion to require compliance with Rule 3.1324 before granting leave to amend. (*Hataishi v. First American Home Buyers Protection Corp.* (2014) 223 Cal.App.4th 1454, 1469.)

Plaintiff has not provided a substantive excuse or explanation for not seeking leave to amend earlier. (See *Roemer v. Retail Credit Co.* (1975) 44 Cal.App.3d 926, 939–940 [“The law is also clear that even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial. The cases indicate that the denial may rest upon the element of lack of diligence in offering the amendment after knowledge of the facts, or the effect of the delay on the adverse party.”]; See also *Huff v. Wilkins* (2006) 138 Cal.App.4th 732, 746 [“he failed to offer any explanation for his delay in seeking leave to amend.”]; See also *Bedolla v. Logan & Frazer* (1975) 52 Cal.App.3d 118, 136 [“The law is well settled that a long deferred presentation of the proposed amendment without a showing of excuse for the delay is itself a significant factor to uphold the trial court's denial of the amendment.”])

Here, Soto fails to explain the year delay in seeking amendment. Soto, at all times, has been aware of this independent harm and basis for the claims now asserted in the proposed amended complaint, as well as the association with Plaintiff.

Therefore, the Court denies the motion.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.